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Case Number: 23STCV10991 Hearing Date: July 28, 2026 Dept: 509

Tammy Zaragoza v. Lancaster Hospital Corporation, et al.

MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: (1) Defendant Lancaster Hospital Corporation

(2) Defendant Universal Health Services, Inc.

RESPONDING PARTY(S): (1) & (2) Plaintiff Tammy Zaragoza

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Tammy Zaragoza (Plaintiff) brings this action against defendants Lancaster Hospital Corporation (Lancaster) and Universal Health Services, Inc (UHS, collectively Defendants). Plaintiff alleges she worked as a Radiologic Technologist at Palmdale Regional Medical Center from approximately October 1990 through November 4, 2022.

Plaintiff's husband sought treatment at Palmdale Regional Medical Center. On October 31, 2022, Plaintiff gave a written complaint to the nursing supervisor regarding the treatment of her husband. On November 4, 2022, Plaintiff was terminated from employment.

Plaintiff brings causes of action for: (1) wrongful termination in violation of public policy; (2) retaliation in violation of Labor Code §1102.5; and (3) Health and Safety Code §1278.5.

Defendants now move for summary judgment, or in the alternative, summary adjudication. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motions for Summary Judgment are DENIED.

Defendants' Motions for Summary Adjudication of the First, Second, and Third Causes of Action are DENIED.

Defendants' Motions for Summary Adjudication of the request for Punitive Damages are GRANTED.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Defendants' Motion for Summary Judgment, or in the Alternative, Summary Adjudication

I. Evidentiary Objections

Pursuant to Code of Civil Procedure, section 437c(q), the Court only rules upon objections asserted against evidence which the Court deems to be material to the disposition of this motion, as follows:

Lancaster Objections No. 10, 41, 42, 43, 45: OVERRULED.

UHS Objections No. 10, 41, 42, 43, 45: OVERRULED.

II. Judicial Notice

Defendants request the Court to take judicial notice of Exhibits 1-7:

1. Plaintiff's Complaint;
2. Health Insurance Portability and Accountability Act of 1996, Pub. L. 104-191, 110 Stat. 1936, ("HIPAA");
3. 42 U.S.C. § 1320d-6 – Wrongful Disclosure of Individually Identifiable Health Information;
4. 45 C.F.R. § 160.103 – Definitions;
5. 45 C.F.R. § 160.502 – Uses and Disclosures of Protected Health Information: General Rules;
6. 45 C.F.R. § 160.514 – Other Requirements Relating to Uses and Disclosures of Protected Health Information;
7. 45 C.F.R. § 164.530 – Administrative Requirements.

Plaintiff objects stating, "Requested Items 1-7 all should be denied as they all are an improper request for judicial notice." (Obj. to RJN.) However, Plaintiff cites Evidence Code, section 452(d), allowing "Records of (1) any court of this state," and section 452(b) which allows "Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." (See Obj. to RJN.) By Plaintiff's own citations, request for judicial notice would be proper.

Accordingly, pursuant to Defendants' request, the Court GRANTS Defendants' request for judicial notice of Exhibits 1-7.

III. Improper Filings

Here, all parties filed documents that violated California Rules of Court.

Plaintiff's opposition fails include a table of contents or a table of authority. (See Cal. Rule of Court, Rule 3.1113(f).) Plaintiff's separate statement disputes material facts without providing evidence and does not just equivocally state whether a fact is disputed but rather provides legal argument in the separate statement. (See Cal. Rules of Court, Rule 3.1350(f).)

Defendants filed an unauthorized reply to Plaintiff's separate statement. (See Cal. Rules of Court, Rule 3.1350(h).) Defendants do not address Plaintiff's additional facts but rather attempts to rebut Plaintiff's responses to Defendants' material facts.

Nevertheless, its discretion, the Court considers all filings. The parties are admonished to comply with all Rules of Court going forward.

IV. Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In analyzing motions for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exists and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

As to each claim as framed by the Complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff's case or a complete defense to plaintiff's action. (Code Civ. Proc. § 437c(o)(2); Bacon v. Southern Cal. Edison Co. (1997) 53 Cal.App.4th 854, 858.) Once the defendant moving party has met the burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (Code Civ. Proc. § 437c(o)(2).)

V. Background Allegations

"PLAINTIFF physically worked at Palmdale Regional Medical Center from approximately October 1990 through November 4, 2022." (Compl. ¶9.) "PLAINTIFF's husband was a patient at Palmdale Regional Medical Center on October 17, 2022 and from October 24, 2022 through November 1, 2022. On October 17, 2022, PLAINTIFF's husband was diagnosed with pneumonia, and was subsequently discharged. On October 24, 2022, he had to return to the hospital because of a serious leg infection. PLAINTIFF's husband had surgery on October 25, 2022 for a serious leg infection, which included a diagnosis of MRSA." (Compl. ¶12.) "[O]n October 30, 2022, PLAINTIFF prepared a written complaint and gave it to the Nursing Supervisor, the morning of October 31, 2022." (Compl. ¶14.) In short, Plaintiff alleges she complained about the standard of care her husband was receiving.

"In relation to PLAINTIFF's complaints, Deborah Cockerham informed PLAINTIFF that DR. FITTER had violated her husband's privacy rights under HIPPA." (Compl. ¶16.) "On November 4, 2022, PALMDALE REGIONAL wrongfully terminated PLAINTIFF." (Compl. ¶17.)

VI. Analysis

Defendants now move for summary judgment or adjudication of each cause of action in the complaint. Each defendant's motion is addressed in turn.

A. Lancaster's Motion for Summary Judgment

a. Second Cause of Action for Retaliation in Violation of Labor Code §1102.5

Labor Code, section 1102.5 provides whistleblower protections to employees who disclose wrongdoing to authorities. It prohibits an employer from retaliating against an employee for sharing information the employee "has reasonable cause to believe ... discloses a violation of state or federal statute" or of "a local, state, or federal rule or regulation" with a government agency, with a person with authority over the employee, or with another employee who has authority to investigate or correct the violation. (§ 1102.5, subd. (b).) "This provision," the Supreme Court of California has explained, "reflects the broad public policy interest in encouraging workplace whistle-blowers to report unlawful acts without fearing retaliation." (Green v. Ralee Engineering Co. (1998) 19 Cal.4th 66, 77.) A claim for violation of Labor Code section 1102.5 requires "(1) the plaintiff establish a prima facie case of retaliation, (2) the defendant provide a legitimate, nonretaliatory explanation for its acts, and (3) the plaintiff show this explanation is merely a pretext for the retaliation. [Citations.] To establish the first element, the plaintiff must show (1) the plaintiff engaged in protected activity, (2) the defendant subjected the plaintiff to an adverse employment action, and (3) there is a causal link between the two." (Ross v. Cnty. of Riverside (2019) 36 Cal.App.5th 580, 591–92.)

"To sum up the statute's requirements: 'First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee's protected activities was a contributing factor in a contested employment action.... Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.' (Ibid.; see also § 1102.6.)" (Vatalaro v. County of Sacramento (2022) 79 Cal.App.5th 367, 379–380.)

1. Plaintiff Met Her Burden Demonstrating Retaliation was a Contributing Factor

"To establish the first element, the plaintiff must show (1) the plaintiff engaged in protected activity, (2) the defendant subjected the plaintiff to an adverse employment action, and (3) there is a causal link between the two." (Ross v. Cnty. of Riverside, supra, 36 Cal.App.5th at p. 591-92.)

Here, Lancaster challenges Plaintiff did not have reasonable cause to believe the activity reported was a violation of law. (Mot. at p. 16.)

In the complaint, Plaintiff alleges "PLAINTIFF disclosed to told Deborah Cockerham, the Director of Risk Management, about all of the unlawful conduct that her husband experienced including: 1) being forced-fed psychotropic medication against his will; 2) defaming her husband's reputation that he was experiencing withdrawals from methamphetamines; 3) leaving him to stay in his urine for five hours; 4) leaving him in a bloody gown for hours; 5) violating HIPPA laws by the hospitalist and nurses at the hospital, as he was being labeled as a patient who was suffering methamphetamines withdrawals; 6) fraudulent and inaccurate medical records that were being created by nurse personnel; 7) not providing him his pain medication in a timely fashion – every three hours as opposed to five hours. In relation to PLAINTIFF's complaints, Deborah Cockerham

informed PLAINTIFF that DR. FITTER had violated her husband's privacy rights under HIPPA." (Compl. ¶46.)

Labor Code, section 1102.5 applies to employees who reasonably believed that the information they revealed disclosed a violation. The statute does not require the employee to correctly identify or specify the particular legal provision. (*Contreras v. Green Thumb Produce, Inc.* (2025) 116 Cal.App.5th 1251, 1260 ["the relevant inquiry is not whether the conduct actually violated any specific statute or regulation, but whether the plaintiff reasonably believed there was a violation."]) "Section 1102.5(b) requires "objective reasonableness" and it "does not protect employees who do not believe or who unreasonably believe that the information they are disclosing shows a violation of the law." (*Ibid.*)

Here, the undisputed facts state "During her meeting with Cockerham-Slaughter on October 31, 2022, Plaintiff stated that Mr. Zaragoza did not receive timely pain medication, was not assisted with his bloody nose, had food trays left by his door, had full urinals, was forced to take Ativan, had his pain medication administered too quickly, was told he was in withdrawal by a nurse while walking into the room, and had nurses writing on his board even though he wouldn't be able to see it because he is legally blind." (UMF No. 39.) "Plaintiff testified she believed the nurses at PRMC not cleaning up her husband's urine and food trays fast enough was unlawful activity." (UMF No. 40.) "Plaintiff testified she believed her husband being force-fed Ativan was illegal because he had the right to refuse treatment despite being in the midst of a panic attack." (UMF No. 41.)

This is sufficient to demonstrate that Plaintiff reasonably believed there was a violation of a statute or regulation. Plaintiff grounds her complaint in some violation of statute or regulation, namely HIPPA or the California Penal Code. [FN 1] Lancaster, however, challenges whether a Plaintiff had an objectively reasonable basis for believing that these violations occurred. "While a lay employee's incorrect legal interpretation may be unreasonable under some circumstances, we see no basis to find that it will always be unreasonable. Rather, '[r]easonableness is generally a question of fact to be resolved by a jury.'" (*Contreras v. Green Thumb Produce, Inc.*, *supra*, 116 Cal.App.5th at p. 1261, internal citations omitted.) Lancaster's argument is a strong one. Namely, Plaintiff as a trained professional should have objectively known the facts here do not constitute a violation of any statute or regulation. However, given the entirety of the facts and circumstances here, and liberally construing them in favor of the Plaintiff, the Court concludes the circumstances do not indicate Plaintiff's belief was unreasonable as a matter of law. Rather, given the factual nature of Plaintiff's knowledge, training, and subjective belief, whether Plaintiff's complaint was objectively reasonable is better resolved by a jury.

As a result, Plaintiff has demonstrated a prima facie case for retaliation under Labor Code, section 1102.5.

2. Legitimate, Independent Action

Next the burden shifts to Lancaster to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the Plaintiff not engaged in protected activity.

Lancaster provides evidence that Plaintiff would have been terminated even if she did not engage in protected activity for accessing Defendants' patient data in violation of HIPPA and the Defendants' Code of Conduct. (UMF No. 48-56.)

Plaintiff disputes this position by providing evidence that "[o]ther PRMC employees who reviewed family medical records, received, at most, a written warning, as opposed to a termination. In fact, out of all the employees in the history of Palmdale Regional Medical Center, they cannot identify any employee who was ever terminated for reviewing a family member's medical records, other than Plaintiff." (AMF No. 112.) However, this appears to be a stretch of the deposition testimony in support of this conclusion. Plaintiff cites the deposition testimony of Melanie Morales, a person most knowledgeable at Lancaster. In that deposition, Morales testifies that two total people have been disciplined for their access to family members in the last five years. (Valencia Decl., Exh. 22 at p. 22-23.) While one was Plaintiff, the other employee was given a "final written warning for their first offense." (*Id.* at p. 25:18-19.) Plaintiff offers that this difference in treatment is explained by a retaliatory motive against Plaintiff for her protected activity.

Here, the burden of proof weighs against Lancaster. Plaintiff's evidence is sufficient to create a dispute whether Lancaster, by clear and convincing evidence, would have terminated her employment regardless of the protected activity. "Whether

judgment as a matter of law is appropriate in any particular case will depend on a number of factors. These include the strength of the plaintiff's prima facie case, the probative value of the proof that the employer's explanation is false, and any other evidence that supports the employer's case.... [Citation.] However, many employment cases present issues of intent, ... motive, and hostile working environment, issues not determinable on paper. Such cases ... are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be." (Moore v. Regents of Univ. of California (2016) 248 Cal. App. 4th 216, 236 [emphasis in original].) Indeed, Lancaster's intent and motive is a question of fact. Plaintiff has provided sufficient evidence that would allow a reasonable juror to conclude that Lancaster's reason for termination was rooted in her protected activity, not her violation of HIPPA or company policy.

Accordingly, Lancaster's Motion for Summary Adjudication as to the second cause of action is DENIED.

b. First Cause of Action for Wrongful Termination in Violation of Public Policy

Lancaster argues that Plaintiffs' wrongful termination claim fails because "Plaintiff cannot prevail on her underlying claims and has not asserted any allegations of battery, her wrongful termination claim must also fail as a matter of law." (Mot at p. 22:5-7.)

As Plaintiff's second cause of action for violation of Labor Code, section 1102.5 survives, this argument fails.

Accordingly, Lancaster's motion for summary adjudication as to the first cause of action is DENIED.

c. Third Cause of Action for Health and Safety Code §1278.5

Here, Lancaster alleges, "Plaintiff lacks standing to pursue a Health and Safety Code section 1278.5 claim because her complaint was brought in her capacity as a patient's wife, not as a health care worker." (Mot. at p. 19:3-4.)

Health and Safety Code, section 1278.5(b)(1) states: "No health facility shall discriminate or retaliate, in any manner, against any patient, employee, member of the medical staff, or any other health care worker of the health facility because that person has done either of the following."

It appears from the plain reading of the statute that Plaintiff has standing under this statute as an employee, member of the medical staff, or any other health care worker. In the motion, Lancaster alleges Plaintiff was only filing the complaints in her capacity as a wife, not as a health care professional. The statute does not appear to create this distinction nor does Lancaster cite any authority that creates this distinction. In fact, "we interpret subdivision (b)(1) as prohibiting a health facility from both discriminating or retaliating against any of the identified individuals as a result of that particular individual undertaking whistleblowing activity, and also from discriminating or retaliating against a patient as a result of one of the other identified individuals (i.e., an employee, member of the medical staff, or other health care worker of the facility) undertaking whistleblowing activity on behalf of that patient." (Brenner v. Universal Health Services of Rancho Springs, Inc. (2017) 12 Cal.App.5th 589, 608.) There appears no authority that requires the Court to determine the exact nature of Plaintiff's complaint: whether as a wife or as a healthcare worker. Plaintiff was an individual protected under the statute. Whether she was motivated by her position as a healthcare worker or her relationship with the patient does not appear to be relevant to the application of Section 1278.5.

Further, Lancaster argues that Plaintiff failed to provide sufficient evidence of a retaliatory action as there was a legitimate reason for her termination.

"If the employer meets its initial burden on summary judgment to show that the adverse employment action was based upon legitimate, nondiscriminatory factors, "the burden shifts to the employee to 'demonstrate a triable issue by producing substantial evidence that the employer's stated reasons were untrue or pretextual, or that the employer acted with a

discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.” (Scheer v. Regents of the University of California (2022) 76 Cal.App.5th 904, 917.)

Here, the burden shifting framework shifts in favor of Plaintiff. Indeed, Lancaster has presented facts that Plaintiff would have been terminated even if she did not engage in protected activity for accessing Defendants’ patient data in violation of HIPPA and the Defendants’ Code of Conduct. (UMF No. 48-56.) However, as discussed above Plaintiff offers sufficient factual evidence to create a reasonable inference that this reason is merely pretextual as no other employee was terminated for these types of violations. (See AMF No. 112.) In the end, “issues of intent, ... motive, and hostile working environment, issues not determinable on paper. Such cases ... are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.” (Moore v. Regents of Univ. of California (2016) 248 Cal. App. 4th 216, 236 [emphasis in original].) Lancaster’s intent and motive for terminating Plaintiff is ultimately a question of fact.

Accordingly, Lancaster’s motion for summary adjudication as to the third cause of action is DENIED.

Because all causes of actions have not been disposed of, Lancaster’s motion for summary judgment is DENIED.

d. Request for Punitive Damages

Finally, Lancaster moves to adjudicate Plaintiff’s request for punitive damages. They argue that Plaintiff “cannot demonstrate oppression, malice, or fraud with clear and convincing evidence.” (Mot. at p. 22:10-11.)

“It is settled...that a claim for punitive damages is one of the substantive areas which is properly the subject of a motion for summary adjudication.” (Catalano v. Superior Ct. (2000) 82 Cal.App.4th 91, 92; Code Civ. Pro. § 437c, subd. (f)(1).) Civil Code, section 3294, subdivision (a) permits an award of punitive damages “for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Emphasis added.) Civil Code, section 3294(b), provides that a corporate employer is not liable for punitive damages based upon the acts of its employees unless the acts were committed, authorized, or ratified by a corporate officer, director, or managing agent. (Powerhouse Motorsports Grp., Inc. v. Yamaha Motor Corp., U.S.A. (2013) 221 Cal.App.4th 867, 885.)

Here, the while evidence may demonstrate Plaintiff was subjected to retaliatory conduct, there is no evidence, viewed through the lens of the “clear and convincing” standard, by which a reasonable trier of fact could find Lancaster guilty of “oppression, fraud, or malice.” Rather, viewed in the light most favorable to Plaintiff, the evidence establishes only a triable issue as to whether Defendants wrongfully terminated Plaintiff. Even assuming they did, there is no evidence this act was done with the requisite oppression, fraud, or malice. (See Opp. at p. 20:6-24.) Instead, in opposition Plaintiff challenges whether Lancaster’s employees are “managing agents.” But even assuming they were, there is no evidence of the underlying “oppression, fraud, or malice.”

Accordingly, Lancaster’s motion for summary adjudication of punitive damages is GRANTED.

B. UHS’s Motion for Summary Judgment

UHS moves for summary judgment of all causes of action. As an initial matter, UHS moves for summary judgment on identical grounds as Lancaster citing the same evidence. As the analysis as to UHS is identical to Lancaster, the Court would reach the same conclusion and deny the motion for summary judgment on all causes of action while granting adjudication as to punitive damages.

However, UHS offers two separate arguments in support of their motion for summary judgment. First, UHS and Lancaster are not integrated enterprises and second, UHS took no actions involving Plaintiff whatsoever. In opposition, Plaintiff alleges UHS was a joint employer, UHS has agency liability, and UHS has integrated enterprise liability.

The existence of an employment relationship is necessary to support Plaintiff's claims. (See *Weinbaum v. Goldfarb, Whitman & Cohen* (1996) 46 Cal.App.4th 1310, 1314-15 ["[T]he duty on which the tort [of wrongful termination in violation of public policy] is based is a creature of the employer-employee relationship...."].) Here, Plaintiff has put forth sufficient evidence to demonstrate UHS was a joint employer.

"The various designated tests adopted by the courts to determine the existence of an employer/employee relationship have articulated many of the same or similar governing standards, and have 'little discernible difference' between them. [Citations.] The common and prevailing principle espoused in all of the tests directs us to consider the 'totality of circumstances' that reflect upon the nature of the work relationship of the parties, with emphasis upon the extent to which the defendant controls the plaintiff's performance of employment duties. [Citations.] 'There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze 'myriad facts surrounding the employment relationship in question.' [Citation.] No one factor is decisive. [Citation.]' [Citations.] '[T]he precise contours of an employment relationship can only be established by a careful factual inquiry.' [Citation.]" (*St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 311-12.)

"Factors to be taken into account in assessing the relationship of the parties include payment of salary or other employment benefits and Social Security taxes, the ownership of the equipment necessary to performance of the job, the location where the work is performed, the obligation of the defendant to train the employee, the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, the authority to establish work schedules and assignments, the defendant's discretion to determine the amount of compensation earned by the employee, the skill required of the work performed and the extent to which it is done under the direction of a supervisor, whether the work is part of the defendant's regular business operations, the skill required in the particular occupation, the duration of the relationship of the parties, and the duration of the plaintiff's employment. [Citations.]" (*Ibid.*) These factors "cannot be applied mechanically as separate tests; they are intertwined and their weight depends often on particular combinations." (*Vernon v. State of California*, supra, 116 Cal.App.4th at pp. 124-125). The most important factor is "the defendant's right to control the means and manner of the workers' performance." (*Id.* at p. 126.)

Plaintiff disputes UHS's evidence that UHS was not a joint employer. (UMFs 68, 69, 71, 72, 79-80.) Plaintiff also introduces evidence that "there was a UHS Code of Conduct that Plaintiff had to follow. If Plaintiff did not follow that Code of Conduct, UHS, Inc. could terminate Plaintiff's employment." (AMF No. 3.) "Universal Health Services, Inc, on Plaintiff's behalf, contracted with The Hartford Life Insurance company to provide Plaintiff life insurance.: (AMF No. 5.) "Plaintiff had to login to the www.UHS.com website to review her benefits, change her benefits, and determine any eligibility regarding additional benefits." (AMF No. 7.) "Plaintiff would login into the UHS website, as a UHS employee, to access her timecards and time sheets." (AMF No. 8.) [FN 2]

Here, considering the totality of the circumstances, a reasonable trier of fact could conclude that UHS was in an employer/employee relationship with the Plaintiff. Even with a lack of formal control over Plaintiff, the extent to which Defendant controlled Plaintiff's employment including timesheets, promotions, and UHS's control over the hospital. If UHS controlled Plaintiff's performance as Plaintiff claims, Defendant could reasonably be considered an employer. This conclusion is in line with the general policy for Courts to "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.*, supra, 39 Cal.4th at p. 389, emphasis added.) Assuming UHS held the level of control that Plaintiff asserts, a reasonable trier of fact may conclude that UHS was a joint employer.

As UHS may be liable as a joint employer with Lancaster, UHS's motion for summary adjudication as to the first, second, and third causes of action is DENIED.

UHS's motion for summary adjudication of the request for punitive damages is GRANTED.

Because all causes of actions have not been disposed of, UHS's motion for summary judgment is DENIED.

Plaintiff is ordered to give notice, unless waived.

IT IS SO ORDERED.

Dated: July 28, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Lancaster disputes whether elder abuse is properly alleged in the complaint as a basis for Plaintiff's original complaint. The Court does not address this issue as it is not dispositive to this motion.

FN 2 - Plaintiff includes significant argument in their additional material facts. "The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion." (CRC Rule 3.1350, subd (f)(3), emphasis added.) The Court, therefore, disregards such arguments presented in Plaintiff's Separate Statement.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.